

1/5

- File No.: EXP202212933

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 6, 2022, Mr. A.A.A., with NIF ***NIF.1 (hereinafter, the respondent), was sanctioned for the existence of a security camera above the entrance door (**ADDRESS.1) directed towards the street, the house, and the garden of the complainant, for a violation of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €300 (three hundred euros), in file EXP202102996, issuing PS/00005/2022, in which it was also ordered that the respondent, pursuant to Article 58.2.d) of the GDPR, within ten working days, adopt the following measures: Provide proof of having removed the device in question by submitting documentary evidence with date and time that certifies such action, or, failing that, provide proof of the regularization of the camera in accordance with current regulations.

SECOND: Ms. B.B.B. (hereinafter, the complainant), on November 25, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against Mr. A.A.A. with NIF ***NIF.1, for the installation of a video surveillance system located at **ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant in file EXP202102996, in which a sanctioning resolution was issued against the respondent for a camera directed at the public road and the complainant's residence, presents a new complaint stating that the respondent has not corrected the situation regarding the camera evaluated in the aforementioned file, having installed two new cameras on the facade of his residence, directed as the previous one, at the public road and the complainant's residence.

She provides images of the location of the cameras.

The documents submitted are:

- Photographic report

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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28001 – Madrid

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2/5

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail, was returned marked "absent delivery"; the forwarding was reiterated by the same means, and notification was made on 01/18/2023.

No response has been received to this forwarding letter.

FOURTH: On February 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On July 5, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: After notifying the aforementioned initiation agreement in accordance with the rules established in the LPACAP, the respondent submitted a written statement in which he stated the

following:

"IMAGES OF THE INSTALLED SURVEILLANCE CAMERAS ARE PROVIDED, WHICH IN NO CASE RECORD INFORMATION FROM THE PUBLIC ROAD OR FROM ANY OTHER PROPERTY. I REQUEST THAT THE SANCTIONING PROCEDURE BE ARCHIVED AS IT LACKS FOUNDATION, AS DEMONSTRATED BY THE SUBMITTED IMAGES."

SEVENTH: On February 14, 2024, a resolution proposal was made, proposing to the Director of the Spanish Agency for Data Protection to sanction Mr. A.A.A., with NIF ***NIF.1, for a violation of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €500 (five hundred euros).

EIGHTH: On February 26, 2024, the respondent submitted allegations to the resolution proposal, stating:

"Captures from the cameras have been presented according to the last request. It is not possible to present previous captures as the cameras do not record images; they simply alert us to intrusions and we can view them live. If we view them live, it does allow us to make recordings or screenshots on mobile devices. For that reason, no previous recordings have been made or are retained.

I request that the sanctioning procedure be annulled as no rights of the complainant have been infringed or violated. The cameras are solely intended to preserve the security of our home and its inhabitants. They do not focus on any other home or the public road as evidenced in the response to the previous request. Furthermore, this is a particularly sensitive issue as we have suffered two intrusions with attempted robbery in the last 3 months. This fact can be proven with calls to 112 and calls to the Mossos and local police."

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28001 – Madrid
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3/5

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The claimant states that the respondent has not corrected the situation regarding the camera evaluated in the previous Sanctioning Procedure, having installed two new cameras on the façade of their home, oriented like the previous one, towards the public road and towards the claimant's home. They provide images of the location of the cameras.

SECOND: The respondent claims to provide images of the surveillance cameras, which in no case capture information from the public road or from any other property. They attach a video capture dated August 8, 2023.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to Allegations

In response to the allegations presented by the respondent to the Initiation Agreement, the following should be noted:

This is the second Sanctioning Procedure against the respondent, the first being for a camera at the

door of their home.

In this new procedure, there are two additional cameras that join the one at the door, and the only response received from the respondent has been after the initiation agreement of this sanctioning procedure.

The images provided by the respondent in their allegations include three captures from the three cameras, with what appear to be privacy masks, to avoid recording outside the property. However, the third image, a video capture, is dated August 8, 2023, which would indicate that this image was taken after the initiation of the sanctioning procedure, suggesting that the infringement could have occurred up to that date.

In response to the allegations presented by the respondent to the Resolution Proposal, the following should be indicated:

The respondent states that it is not possible to present captures prior to the last request, as the cameras do not record images, but simply alert to intrusions and can be viewed live. Only at the moment of viewing them live can recordings or screenshots be made. For that reason, they do not retain recordings or previous captures.

In light of the above, and since it cannot be proven that the cameras record outside their property, by virtue of the principle of the presumption of innocence, the allegations presented by the respondent are accepted.

III

Presumption of Innocence

The principle of the presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework, and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi*, in its various manifestations, is conditioned on the evidence and on a contradictory procedure in which the parties can defend their positions. In this regard, the Constitutional Court in its Judgment 76/1990, of April 26, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

The presumption of innocence governs without exceptions in the sanctioning legal framework, and must be respected in the imposition of any sanction, whether penal or administrative (TC 13/1981), as the exercise of the sanctioning right, in any of its manifestations, is conditioned on the evidence and on a contradictory procedure in which the parties can defend their positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TC Auto 3-12-81).

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5/5

IV

Conclusion

In accordance with the above, it has not been established that the common area of access to the residences of the parties, as well as to the private areas of the residences of the respondent and her mother, is being recorded.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the present procedure, as no administrative infringement has been

established within the framework of the current data protection regulations.

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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